

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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HAYTHAM ABDALLAH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSE M.
SANTIAGO (SHIELD #30357), POLICE OFFICER
YUROS LAV SHVARTSMAN (SHIELD #28828),
POLICE OFFICERS JOHN DOES #1-4 (names and numbers
of who is unknown at present), and other unidentified members
of the New York City Police Department,

Defendants.
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SUMMONS

Index #

Basis of Venue:
Place of Incident

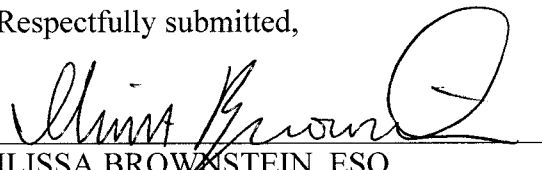
Plaintiff Designates
Kings County as
Place of Trial

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 25, 2015

Respectfully submitted,


ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway (Suites 813 & 814)
New York, New York 10006
(212) 691-3333

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street New York, NY 10007

POLICE OFFICER JOSE M. SANTIAGO (SHIELD #30357)
68th Precinct, Brooklyn, New York

POLICE OFFICER YUROS LAV SHVARTSMAN (SHIELD #28828)
68th Precinct, Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
HAYTHAM ABDALLAH,

VERIFIED COMPLAINT

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSE SANTIAGO (SHIELD #30357), POLICE OFFICER YUROS LAV SHARTSMAN (SHIELD #28828), POLICE OFFICERS JOHN DOES #1-4 (names and numbers of who is unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
-----X

Plaintiff **Haytham Abdallah**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Haytham Abdallah is a citizen of the United States and resident of Brooklyn, New York.
3. Police Officer Jose Santiago (Shield #30357) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Jose Santiago (Shield #30357) is being sued in his individual capacity and official capacity.

5. Police Officer Yuroslav Shvartsman (Shield #28828) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer Yuroslav Shvartsman (Shield #28828) is being sued in his individual capacity and official capacity.
7. Police Officer John Does #1-4 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officer John Does #1-4 is being sued in his individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of his State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(H) hearing examination of the Plaintiff on April 15, 2015.

STATEMENT OF FACTS

14. Haytham Abdallah is 25 years old. He is a foreman for Canal Construction.
15. Mr. Abdallah has never been convicted of a crime.
16. On December 11, 2014 at 1:30 pm on 3rd Avenue, between 84th and 85th streets, in Brooklyn, NY, Mr. Abdallah was in a car with his two cousins Mr. Isssam Hamadan and Ms. Manal Hamadan. Mr. Abdallah was in the front passenger seat of his cousin, Issam Hamadan's uncle's car. The car was previously damaged in an unrelated event, and the license plate was visible and legible on the windshield.
17. Mr. Hamadan exited the car to enter a store on 3rd Avenue. To avoid receiving a citation, Mr. Abdallah moved into the driver's seat. He never drove the car.
18. Police officers pulled up to the parked vehicle, grabbed the driver's door handle and opened it. The police officers told Mr. Abdallah to move the car, but Mr. Abdallah told the officers that he did not know how to drive a stick shift.
19. Several police officers then approached Mr. Hamadan's uncle's car and screamed for Mr. Abdallah to "get the fuck out of the car."
20. One of the police officers said "you fucking Arabs," took Mr. Abdallah's phone out of his right hand, and tossed it onto the space in the car door. The police officer then picked the phone up again, and tossed it, this time hitting the gas pedal and damaging Mr. Abdallah's phone. Mr. Abdallah told the police officer that the officer damaged his phone, and then Mr. Abdallah was handcuffed by the officer.
21. Mr. Abdallah was arrested for having improper display of plates, obstructing governmental administration in the second degree, and disorderly conduct.
22. Mr. Abdallah rode the entire trip to the 68th police precinct in handcuffs. When he arrived to the police precinct, the handcuffs were so difficult to remove that it took the police officers 30 minutes to finally take them off, and the police officers ripped Mr. Abdallah's sweater in the process.
23. Mr. Abdallah was incarcerated for approximately 23 hours.
24. He received an ACD at arraignment.
25. Mr. Abdallah also lost 2 days of work, and approximately \$280 of income.
26. Plaintiff filed a notice of claim on January 17, 2015.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

27. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth at length herein.
28. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause, maliciously prosecuted, and subjected to an assault by various officers and excessive force in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

29. Plaintiff repeats and alleges paragraphs 1 through 28 as if fully set forth herein.
30. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
31. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
32. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
37. Defendants failed to intervene to prevent the unlawful conduct described herein.
38. As a result of the foregoing, plaintiff was subjected to an assault, failure to provide medical treatment at a hospital when head injuries were involved, and failure to give defendant access to his inhaler or allergy medications.
39. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. Defendants owed a duty of care to plaintiff.
43. Defendants breached that duty of care by subjecting him to an assault, failure to provide medical treatment at a hospital when head injuries were involved, and failure to give defendant access to his inhaler or allergy medications..
44. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
45. All of the foregoing occurred without any fault by plaintiff.
46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
49. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
50. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

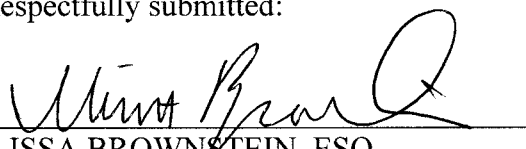
51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States. The defendants failure to provide medical treatment at a hospital when head injuries were involved and the Plaintiff is an asthmatic and requires access to his inhaler as well as allergy medications is a common practice of the NYPD.
53. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
54. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
55. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
56. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.
57. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, HAYTHAM ABDALLAH, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
July 25, 2015

Respectfully submitted:

By:


ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway
Suites 813 & 814
New York, New York 10006
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER JOSE M. SANTIAGO (SHIELD #30357)
68th Precinct, Brooklyn, New York

POLICE OFFICER YUROS LAV SHVARTSMAN (SHIELD #28828)
68th Precinct, Brooklyn, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the **LAW OFFICE OF ILISSA BROWNSTEIN, ESQ, P.C.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 25, 2015


Ilissa Brownstein, Esq.